



U.S. Department
of Transportation

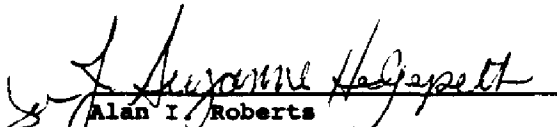
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10354 (EXTENSION)
FOURTH REVISION July 16, 1991

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 10354 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to March 31, 1995. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

APR 29 1993

(DATE)

Dist: FRA

EXEMPTION HOLDER

APPLICATION DATE

BASF Corporation
Parsippany, NJ

March 25, 1993



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

FEB 1 - 90

DOT-E 10354
(FOURTH REVISION)

1. BASF Corporation, Parsippany, New Jersey, is hereby granted an emergency exemption from certain provisions of this Department's Hazardous Materials Regulations to offer a package prescribed herein of a corrosive material for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes shipments of hydrochloric acid in DOT Specification 111A100W5 tank car tanks equipped with an orifice plate in line with the safety relief device, and provides no relief from any regulations other than as specifically stated.

2. BASIS. This emergency exemption is based on BASF's application of March 16, 1990, submitted in accordance with 49 CFR 107.113, and a determination that it is necessary for protection of life or property and additional information dated March 28, 1990, May 10, 1990, July 17, 1990 and December 12, 1990.

3. HAZARDOUS MATERIALS (Descriptor and class). Hydrochloric acid, classed as a corrosive material.

4. PROPER SHIPPING NAME (49 CFR 172.101). Hydrochloric acid.

5. REGULATION AFFECTED. 49 CFR 179.200-18(b).

6. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

7. SAFETY CONTROL MEASURES. Packagings prescribed are rubber lined, DOT Specification 111A100W5 tank car tanks in conformance with all of specification requirements, except that the safety vent is equipped with a tetrafluoroethylene (TFE) orifice plate having an opening not less than 0.8 inch diameter. The relieving capacity of the pressure relief system on the tank car must be based upon the formula contained in A8.00 of the tank car manual and be adequate to prevent tank car rupture in a fire. A list of the GATX tank car serial numbers is on file with the Office of Hazardous Materials Exemptions and Approvals.

8. SPECIAL PROVISIONS.

a. Prior to transportation, the shipper must determine that the safety vent assembly including the orifice and rupture disc are in proper condition for transportation.

b. Tank cars must be marked "DOT-E 10354" in four inch letters on a contrasting background above the DOT specification number.

c. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

9. REPORTING REQUIREMENTS. Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. July 31, 1991.

Issued at Washington D.C.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

FEB 2 - 1991

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Branch.

Dist: FRA.